Docket No. FISCR 18-01
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In the
In the
United States Foreign Intelligence
UNITED STATES FOREIGN INTELLIGENCE SURVEILLANCE COURT OF REVIEW
Surveillance Court of Review

IN RE: CERTIFICATION OF QUESTIONS OF LAW TO THE FOREIGN INTELLIGENCE SURVEILLANCE COURT OF REVIEW

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Upon Certification for Review by the United States Foreign Intelligence Surveillance Court

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BRIEF OF AMICUS CURIAE

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STATEMENT REGARDING ORAL ARGUMENT

Amicus curiae respectfully requests oral argument in this matter. As the En Banc Court recognized, this is a "novel legal claim." *In re Opinions & Orders of this Court Addressing Bulk Collection of Data Under the Foreign Intelligence Surveillance Act*, No. Misc. 13-08, at *1 (FISA Ct. Nov. 9, 2017) (en banc) (App. C 33) [hereinafter En Banc Op.]. It is also a case of enormous national importance. It goes to the heart of the rule of law, as well as the common law and First Amendment right of public access to judicial opinions. In addition, it raises significant separation of powers concerns. Neither the Presiding Judge nor the En Banc Court, moreover, had the benefit of a hearing. Amicus curiae believes that oral argument would provide substantial assistance to the Court.

QUESTION PRESENTED

Whether the American Civil Liberties Union, the American Civil Liberties Union of the Nation's Capital, and the Media Freedom and Information Access Clinic (collectively "the Movants") have "standing to assert" a "First Amendment right of public access to [Foreign Intelligence Surveillance Court] judicial opinions." *Order*, *In re Certification of Questions of Law to the Foreign Intelligence Surveillance Court of Review*, No. 18-01 (FISA Ct. Rev. Jan. 9, 2018) (App. C 31)

Whether the American Civil Liberties Union, the American Civil Liberties Union of the Nation's Capital, and the Media Freedom and Information Access Clinic (collectively "the Movants") have "standing to assert" a "First Amendment right of public access to [Foreign Intelligence Surveillance Court] judicial opinions." Order, *In re Certification of Questions of Law to the Foreign Intelligence Surveillance Court of Review*, No. 18-01 (FISA Ct. Rev. Jan. 9, 2018) (App. C 31)

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INTRODUCTION

The En Banc Court got it right: Movants have asserted a sufficient injury-in-fact for standing. En Banc Op. at *18. Movants have the right to be heard regarding their constitutional right of access to the Court's opinions. The question is not the extent of the underlying right, but whether it is cognizable—i.e., "capable of being known or recognized." *Black's Law Dictionary* (10th ed. 2014), cited and quoted in *Id.* at *9. Courts have repeatedly assumed and expressly recognized a First Amendment right of access to judicial records, which establishes a cognizable interest. *See, e.g., Press-Enterprise Co. v. Superior Court (Press-Enterprise I)*, 464 U.S. 501, 505-10 (1984); *Globe Newspaper Co. v. Superior Court*, 457 U.S. 596, 603-11 (1982); *Richmond Newspapers, Inc. v. Virginia*, 448 U.S. 555, 580 (1980). *See also Id.* at *10-14.[1] It is precisely the type of interest that "deserve[s] protection against injury." *Id.* at *10 (internal quotations omitted); *see* discussion, *infra*.

The En Banc Court also correctly recognized the distinction between the question of standing and examination of the underlying cause of action: "At bottom, the legally-protected interest test is not concerned with determining the proper scope of the First Amendment right or whether a plaintiff is correct that such a right has in fact been invaded; that is a merits inquiry." *Id.* at *9. Even if one adopts the dissent's approach,

[1] The "injury is 'concrete,' and 'actual,' because the opinions are…not available." En Banc Op.. at *8. It is also sufficiently particularized. *Id.*

IDENTITY AND INTEREST OF AMICUS CURIAE

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INTRODUCTION

The En Banc Court got it right: Movants have asserted a sufficient injury-in-fact for standing. *En Banc Op.* at *18. Movants have the right to be heard regarding their constitutional right of access to the Court's opinions. The question is not the extent of the underlying right, but whether it is cognizable—i.e., "capable of being known or recognized." *Black's Law Dictionary* (10th ed. 2014), cited and quoted in *Id.* at *9. Courts have repeatedly assumed and expressly recognized a First Amendment right of access to judicial records, which establishes a cognizable interest. *See, e.g., Press-Enterprise Co. v. Superior Court (Press-Enterprise I)*, 464 U.S. 501, 505-10 (1984); *Globe Newspaper Co. v. Superior Court*, 457 U.S. 596, 603-11 (1982); *Richmond Newspapers, Inc. v. Virginia*, 448 U.S. 555, 580 (1980). *See also Id.* at *10-14.[1] It is precisely the type of interest that "deserve[s] protection against injury." *Id.* at *10 (internal quotations omitted); *see* discussion, *infra*.

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[1] The "injury is 'concrete,' and 'actual,' because the opinions are…not available." *En Banc Op.* at *8. It is also sufficiently particularized. *Id.*

with constitutional and statutory analysis that impact the rights of millions of Americans and provide insight into how the executive is wielding its power.

Movants have a common law right of public access to the law, which standing doctrine left untouched. The Supreme Court uses an historical test to determine the common law rights in the Constitution. Common law at the Founding relied upon and recognized the public right of access. The First Amendment incorporated and expanded upon the right. The expressive rights of speech, press, and assembly, together with the right to petition, require that citizens have access to the law.

Should the Court fail to find standing, it would undermine rule of law. The executive could use secret legal interpretations that the People would not knowingly countenance. It could break the law, without the electorate's knowledge. Separation of powers would be endangered. It does not matter that the opinions have been partially released; nor is it of any moment whether the Court may eventually reject a claim to particular, classified facts. In light of the important and well-established interest at stake, Movants have the right to argue a First Amendment right of access.

ARGUMENT

I. MOVANTS SEEK ACCESS TO JUDICIAL OPINIONS THAT HAVE THE FORCE OF LAW.

The Constitution provides for the judicial power of the United States to be vested "in such inferior courts as the Congress may from time to time ordain and establish." U.S. Const. art. III, § 1. In 1978 the Foreign Intelligence Surveillance Act established FISC. 50 U.S.C. §1803(a), (b) (West 2015). Every court that has considered the issue has determined that FISC is an Article III court.

ARGUMENT

I. Movants seek access to judicial opinions that have the force of law.

The Constitution provides for the judicial power of the United States to be vested "in such inferior courts as the Congress may from time to time ordain and establish." U.S. Const. art. III, §1. In 1978 the Foreign Intelligence Surveillance Act established FISC.

Princeton trans., 1947). To be morally binding, law must be promulgated. *Id.* Early

II. FAILURE TO RECOGNIZE MORALLY BINDING LAW MUST BE PROMULGATED EARLY RULE OF LAW.

liberal, democratic theorists adapted the concept of natural law to political obedience.

In 1989 Justice Scalia noted, "In a judicial system such as ours, in which judges Where the government ceases to protect individuals in their lives, liberties, and estates,

are bound not only by the text of code or Constitution, but also by the prior decisions and each person, in their own conscience, satisfied that the conditions are met, then

of superior courts...courts have the capacity to 'make' law." Antonin Scalia, *The Rule of* individuals have not just the right but the duty to rebel. John Locke, *Second Treatise*

Law is the Law of Rules, 56 U. Chi. L. Rev. 1175, 1175-81 (1989). The four opinions *of Government* (Richard Cox ed. 1982) (1690). Deciding whether to obey requires

being sought constitute law.

knowing how the government wields its power, which acts as the most important

For millennia, access to the law has been the hallmark of rule of law. As developed constraint on government. As Jeremy Bentham explained,

in the writing of Aristotle, Cicero and St. Augustine, *lex iniusta lex non est*. Thomas

Without publicity, all other checks are insufficient: in comparison of publicity, all

other checks are of small account. Recollection, appeal, whatever other institutions might present themselves in the character of checks, would be found to operate rather as cloaks than checks; as cloaks in reality, as checks only in appearance. Jeremy Bentham, *Rationale of Judicial Evidence* 524 (London, Hunt and Clar 1827).

liberal, democratic theorists adapted the concept of natural law to political obedience.

Nearly every modern jurisprudence theorist follows suit. John Rawls considers Where the government ceases to protect individuals in their lives, liberties, and estates,

publicity to be a formal constraint. John Rawls, *A Theory of Justice* 130, 133 (1971). and each person, in their own conscience, satisfied that the conditions are met, then

John Finnis states that the justness of a law depends upon whether the law itself has individuals have not just the right but the duty to rebel. John Locke, *Second Treatise of*

been made publicly available. John Finnis, *Natural Law and Natural Rights* 351-68 *Government* (Richard Cox ed. 1982) (1690). Deciding whether to obey requires

(2d ed. 2011). H.L.A. Hart's famous "rule of recognition" requires that citizens and knowing how the government wields its power, which acts as the most important

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Concept of Law 91 (1994). Lon Fuller's eight principles, which define law, include, Without publicity, all other checks are insufficient: in comparison of

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knows their remit. Lon Fuller, *The Morality of Law* 39, 47 (1964). He emphasizes the checks, would be found to operate rather as cloaks than checks, as cloaks in

FISC plays a critical role in the balance of power.[23] It is in the Court's best interests for the public to *see* it does so and that it respects the longstanding Article III norm of public access to the law.

III. Failure to find standing would enable executive branch malfeasance and override separation of powers.

The government asserts the authority, acknowledged by Court, "to classify and control access to information bearing on national security." *Dep't of the Navy v. Egan*, 484 U.S. 518, 527 (1988), *quoted* and *cited in* U.S. Resp. to Movant's En Banc Opening Br., at *5; *accord CIA v. Sims*, 471 U.S. 159, 170 (1985). It finds root in the vesting and commander-in-chief clauses. U.S. Const. art. II, §1(1); *Id.* §2(1); Exec. Order 13526, 75 Fed. Reg. 707 (Dec. 29, 2009). In national security, *certain factual* information must remain protected. But the government then makes a light-year leap to say that this authority gives it the power to prevent the Court from publishing its opinions on matters of law. Such brazen ipse dixit carries enormous risk.

Should the government prevail, it could engage in secret interpretations of the law that contravene the public will. One need not look far for examples. For years, the telephony metadata program operated in secret. When it became public, it generated a backlash in all three branches. On August 12, 2013, President Obama responded to

[23] *See, e.g.*, Opinion and Order, *[REDACTED]*, Nos. [REDACTED] (FISA Ct. May 13, 2011) (directing the Government to destroy information obtained by unauthorized electronic surveillance) (App. G 677).

CONCLUSION

Movants have the right to make their case to the Court about the scope of their First Amendment right of access to judicial opinions. They have a legally-cognizable interest in access to the law, recognized by common law and the First Amendment. Rule of law requires access to the law. To hold otherwise would open the door to bad behavior, undermine judicial legitimacy, and harm separation of powers.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

Pursuant to FISC Ct. Rev. R. P. 15(d)(1)-(2), the undersigned certifies that this brief complies with the content requirements of FISC Ct. Rev. R. P. 14(a)(2)-(8) and (10), with the exceptions in FISC Ct. Rev. R. P. 15(d)(1)(A)-(C), and with the type-volume limit of Fed. R. App. P. 32(a)(7)(B) (FISC Ct. Rev. R. P. 15(d)(2)). Excluding the parts of the brief exempted by Fed. R. App. P. 32(f):

☒ this brief contains 1,170 words.

The undersigned relied upon the word count of the word-processing system used to prepare this brief, as Fed. R. App. P. 32(g)(1) permits.

☒ this brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6): it has been prepared in a proportionally spaced typeface using Typst 0.15.0 in 14-point EB Garamond roman type.

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Whether the American Civil Liberties Union, the American Civil Liberties Union of the Nation's Capital, and the Media Freedom and Information Access Clinic (collectively "the Movants") have "standing to assert" a "First Amendment right of public access to [Foreign Intelligence Surveillance Court] judicial opinions." Order, *In re Certification of Questions of Law to the Foreign Intelligence Surveillance Court of Review*, No. 18-01 (FISA Ct. Rev. Jan. 9, 2018) (App. C 31)

CERTIFICATE OF SERVICE

I hereby certify that on February 23, 2018, I provided one original and five copies of the amicus brief to the Clerk of Court, Foreign Intelligence Surveillance Court of Review, who has informed me that the Litigation Security Group will deliver a copy to the government, and sent one copy by Federal Express to each of the following.

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